

23STCV14223 23STCV14223

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-09-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C09%2F28%2F2026

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Case Number: 23STCV14223 Hearing Date: September 28, 2026 Dept: 11

Sullivan,

et al. v. Hyatt Corportaion, et al.

MOTION FOR PRELIMINARY APPROVAL OF CLASS

ACTION SETTLEMENT

Date of Hearing: September 28, 2026 c/f March 4,
2026

Department: 11 (Spring Street)

Case No.: 23STCV14223

TENTATIVE:

Continue for Counsel to address the following:

1.

The Court's Checklist

asked "Why is it proper to use October 2023 as the end date in determining Class Size, when the Settlement includes Class Members through Preliminary Approval, which is currently extending into mid-2026? Is there an escalator clause to account for the increased class size through preliminary approval? Or do the parties want to cap the Class Period to October 2023?" In response, counsel stated:

The class period runs from June

2019 to October 31, 2023 (shortly after the filing of this case), at which point Plaintiffs learned, based on the discovery, that Defendants changed their

practices to clearly disclose on banquet documents what portion of the charge added to banquet bills was a gratuity and what portion was an administrative fee (not to be distributed to staff). Thus, the class consists of the 37 service employees who worked during this period. As is typical in these settlements, the release for these 37 class members goes through preliminary approval, but as a practical matter, the claim raised in this case was rectified in October 2023 (which is why new employees hired after that date are not included in the class). There is not an escalator clause to account for the increased class size through preliminary approval because the total class size is known. For the time period following October 31, 2023 and continuing through the present, the service charge language used by Defendants at the Andaz West Hollywood location complies with Labor Code § 351 and does not serve as a basis for liability or damages for the putative class.³ Accordingly, in response to the Court's prior comments, this is why it is "proper to use October 2023 as the end date."

(Declaration of Liss-Riordan in Support of Revised Motion for Preliminary Approval of Class Action Settlement ("Liss-Riordan Supp. Decl.", ¶9.)).

However, the Class Period remains defined as "'Class Period" means the period of time from June 20, 2019 through the date of preliminary approval of this settlement." (¶1.12) Counsel may revise the Settlement to have the Class Period end on October 2023, but that is not how it is currently defined.

2.

It is represented that Hyatt and named plaintiff Michael Sullivan have separately agreed to a settlement of Mr. Sullivan's separate and independent claims before the Division of Labor Standards Enforcement, captioned as Michael Sullivan v. Hyatt Corporation, Charge Nos. WC-CM-930722 and WC-CM-960515 (the "Charges"). Per that agreement Hyatt agrees to pay the gross sum of \$15,000. (MPA, pg. 1, FN.1.) Counsel represents that "this settlement was negotiated contemporaneously with the class settlement by the same counsel. This settlement (unlike the class settlement) contains a general release of claims. Nothing in the agreement makes it contingent on approval of the class settlement (or vice versa)." (Liss-Riordan Supp. Decl., ¶14 and Exhibit E thereto.) This Individual Settlement Agreement raises the following issues:

a.

Counsel's

supplemental briefing is confusing. First, the Class Settlement Agreement does contain a general release of claims (§6.1.a). Second it is unclear what claims the Settlement covers.

b.

Class

Certification Typicality: How does the Individual Settlement not break typicality? What claims are encompassed in the Individual Settlement Agreement? Are there any claims outside of Mr. Sullivan's wage and hour claims alleged on behalf of the class which are contemplated/released by the Individual Settlement?

c.

Class

Certification Adequacy: How does the Individual Settlement not pose a conflict?

3.

Procedure for submitting

Responses: Can class Members submit Responses via fax or email? If so, make this clear in the Settlement and Notice.

4.

Contents of Notice: the

Notice requires the following revisions:

a.

The Notice contains the wrong funding deadline. §III.1 of the Notice states that Defendant will fund the Settlement not more than 21 days after the judgment entered by the Court becomes final; (Notice, §III.1), while the Settlement at §4.2 states that Defendant will fund within fourteen (14) days after the Effective Date. (§4.2)

b.

Can class Members submit

Responses via fax or email? If so, make this clear in the Notice.

The Court orders the parties to submit supplemental briefing and

supporting declarations as well as revised versions of the Settlement Agreement and Class Notice to address the Court's concerns. The parties are directed to submit the revised signed Settlement Agreement along with a red-lined copy showing all changes and a revised Class Notice with a red-lined copy showing the changes to the notice. Please ensure that all revisions of the Settlement Agreement are properly incorporated into the revised Class Notice. Also review the proposed Order, revise it to conform to the final settlement terms, and file the revised proposed Order with the Court. All supplemental papers are due to be filed by _____. The Court sets a non-appearance case review for _____ to review the supplemental papers.

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

As a "fiduciary" of the absent class members, the trial court's duty is to have before it sufficient information to determine if the settlement is fair, adequate, and reasonable. (7-Eleven Owners for Fair Franchising v. The Southland Corp. (2000) 85 Cal.App.4th 1135, 1151 [citing Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1801, 1802 ("Dunk")].)

California Rules of Court, rule 3.769 governs settlements of class actions. Any party to a settlement agreement may submit a written notice for preliminary approval of the settlement. The settlement agreement and proposed notice to class members must be filed with the motion, and the proposed order must be lodged with the motion. (Cal. Rules of Court, rule 3.769(c).)

In determining whether to approve a class settlement, the court's responsibility is to "prevent fraud, collusion or unfairness to the class" through settlement and dismissal of the class action because the rights of the class members, and even named plaintiffs, "may not have been given due regard by the negotiating parties." (Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (2006) 141 Cal.App.4th 46, 60.)

FAIRNESS OF THE SETTLEMENT AGREEMENT

In an effort to aid the Court in the determination of the fairness of the

settlement, *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-245 (“Wershba”), discusses factors the Court should consider when testing the reasonableness of the settlement.

A

presumption of fairness exists where: (1) the settlement is reached through arm's length bargaining; (2) investigation and discovery are sufficient to allow counsel and the Court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (*Wershba*, supra at p. 245 [citing *Dunk*, supra at p. 1802].) The test is not the maximum amount plaintiff might have obtained at trial on the complaint but, rather, whether the settlement is reasonable under all of the circumstances. (*Wershba*, supra at p. 250.)

In

making this determination, the Court considers all relevant factors including “the strength of [the] plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.”

(*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128 (“Kullar”) [citing *Dunk*, supra at p. 1801].)

“The

fact that a proposed settlement may only amount to a fraction of the potential recovery does not, in and of itself, mean that the proposed settlement is grossly inadequate and should be disapproved.”

(*City of Detroit v. Grinnell*

Corporation (2d Cir. 1974) 495 F.2d 448, 455; see also *Linney v. Cellular Alaska Partnership* (9th Cir. 1998) 151 F.3d 1234, 1242 “[I]t is the very uncertainty of outcome in litigation and avoidance of wasteful and expensive litigation that induce consensual settlements. The proposed settlement is not to be judged against a hypothetical or speculative measure of what might have been achieved by the negotiators.”.)

///

TERMS OF SETTLEMENT AGREEMENT

"Class" means all non-managerial food and beverage banquet service employees who were employed by Defendant in California at the West Hollywood, California Hyatt location as non-managerial banquet service employees and classified as a non-exempt employee at any time during the Class Period. (Settlement, ¶1.5.)

"Class Period" means the period of time from June 20, 2019 through the date of preliminary approval of this settlement. (¶1.12)

Based on its records, Defendant represents that the Class consists of approximately 37 Class Members, based on data available to Defendant at the time showing who worked from June 20, 2019 through approximately October 2023. (¶1.8)

The Parties stipulate to class certification for settlement purposes only. (¶2.4)

The Gross Settlement Amount ("GSA") is \$135,000, non-reversionary. (¶3.1)

The Net Settlement Amount ("NSA") of \$65,000 is the GSA minus:

Up to \$35,000 (<33.3%) for attorneys' fees and costs (¶3.2.b);

Up to \$25,000 for costs of settlement administration (¶3.2.c); and

Up to \$10,000 for enhancement payments to the class representatives (\$25,000 each). (¶3.2.a.)

Defendant will separately pay for employer payroll taxes, which is not included in the Gross Settlement Amount. (¶3.1)

Funding of the Settlement: Defendant shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than fourteen (14) days after the Effective Date. (§4.2)

· Contradiction: Assuming the Court grants final approval, Andaz West Hollywood will fund the Gross Settlement not more than 21 days after the judgment entered by the Court becomes final. (Notice, §III.1)

Payments from the Gross Settlement

Amount: Within 14 days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, the Administration Expenses Payment, the Class Counsel Fees and Expenses Payment, and the Class Representative Service Payment. (§5.1)

No Claim Requirement: Class Members shall not be required to submit a claim form in order to receive an individual settlement payment. (§3.1)

Calculation of Individual Settlement Payments: Class Members' Payment will be distributed in proportion to the amount of service charges they received (as a portion of the total service charges received by the Class) for working events at the defendant hotel during the Class Period. (§3.2.d)

Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis.

· Tax Allocation: 20% as wages; 80% interest and penalties. (§3.2.d.i)

"Response Deadline" means forty-five (45) calendar days after the Administrator mails Class Notice Packet to Class Members and shall be the last date on which Class Members may: (a) submit Requests for Exclusion from the Settlement, or (b) submit his or her Objection to the Settlement. Class Members to whom Class Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the Response Deadline has expired. (§1.32) The same

deadlines apply to Challenges to Calculation of Service Charges Received During Class Period. (§8.6) [Procedure for submitting Responses: Can class Members submit Responses via fax or email? If so, make this clear in the Settlement and Notice.]

· If the number of valid Requests for Exclusion exceeds 5% of the total of all Class Members, Defendant may elect to withdraw from the Settlement. (§19)

Uncashed Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing). (§15.2) For any Class Member whose Individual Class

Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (§15.4)

The Parties agree to use Simpluris, Inc. as the Settlement Administrator. (§1.2)

All class members who do not opt out will release certain claims, discussed in detail below.

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a Presumption of Fairness Exist?

1. Was the Settlement reached through arm's-length bargaining? Yes. Counsel represents that "after months of negotiations, the parties reached a fair resolution of this case that will allow both sides to avoid any further delay or uncertainty regarding the scope of the case and amount of damages." (Declaration of Shannon Liss-Riordan ("Liss-Riordan Decl."), §4.)

2. Were investigation and discovery sufficient to allow counsel and the Court to act intelligently? Yes. Counsel represents that "prior to the settlement in this case, the parties exchanged 'extensive' information, allowing [her] to determine the risks and potential recovery in this case." (Ibid.) In particular, Defendant

produced sample banquet orders, invoices, and bills of events during the Class Period, as well as a spreadsheet of a breakdown of the events during the Class Period which included additional data regarding total food and beverage revenue, total service charge, and the portion of the service charge retained by Defendant. In addition, Defendant provided Plaintiffs with the number of employees that worked banquet events during the Class Period. (Settlement Agreement, ¶2.3.)

3.

Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in complex litigation, including wage and hour class action cases. (Liss-Riordan Decl., ¶¶3,6.)

4. What percentage of class has

objected? This cannot be determined until the fairness hearing. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2011) ¶ 14:139.18 ["Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing."].)

B. Is the settlement fair, adequate and reasonable?

1. Strength

of Plaintiffs' case. "The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement." (Kullar at 130.)

Counsel represents based on the data provided by Defendants, Plaintiffs' counsel was able to estimate that the maximum realistic recovery of each claim asserted in the operative complaint comes to \$246,000. Specifically, Plaintiffs brought this action because they believe that Defendants' retention of service charges violates Labor Code, section 351, which they sought to enforce through the California Unfair Competition Law, Business & Professions Code, sections 17200, et seq. ("UCL"). Counsel contends that restitution under the UCL is to restore to any person any money or property, real or personal, which may have been acquired by means of such unfair competition; and in this case, the issue is whether the full amount of the service charge added to Defendants' banquet bills would look to reasonable customers as gratuities, or whether, as Defendant contends the amount would be less. (Revised Motion ISO Preliminary Approval ("Supp. Brief"), 11:18-12:22.)

2. Risk, expense, complexity and likely duration of further litigation.

Further litigation carries the possibility of non-certification and unfavorable rulings on the merits of the above legal issues.

3.

Risk of maintaining class action status through trial. It would have been Plaintiffs' burden to maintain the class action status through trial.

4. Amount offered in settlement. Based on the calculations above, the Settlement amount of \$135,000 therefore represents approximately 56% of the estimated recovery in this matter. This percentage is within the "ballpark of reasonableness."

5. Extent of discovery completed and the stage of the proceedings. As stated above, it appears that Plaintiffs have completed sufficient discovery in order to make an informed decision.

6. Experience and views of counsel. As indicated above, Class Counsel is experienced in class actions, including wage and hour class action cases. Class Counsel is of the opinion that the settlement is fair, reasonable, and adequate and is in the best interest of the Class in light of all known facts and circumstances.

7. Presence of a governmental participant. This factor is not applicable.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object or opt-out. This factor becomes relevant during the fairness hearing.

SCOPE OF RELEASE

Effective

on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiffs and Participating Class Members will release claims

against all Released Parties as follows: (¶6)

All

Participating Class Members, on behalf of themselves and each of their respective executors, administrators, representatives, agents, heirs, successors, assigns, or trustees, release Released Parties from the Released Class Claims. (¶6.2)

"Released

Class Claims" means any and all claims, rights, demands, charges, complaints, causes of action, obligations, or liability of any and every kind that are based on the facts stated in the Operative Complaint which occurred during the Class Period and for any and all claims that were raised or could have been raised based on the factual allegations made in the Operative Complaint that occurred during the Class Period. This includes claims for failure to provide gratuities in violation of Cal. Lab. Code § 3 51 and claims for unfair competition in violation of Cal. Bus. & Prof Code § § 17200, et seq. Except as expressly set forth in this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or Class claims based on facts occurring outside the Class Period. (¶1.29)

"Released

Parties" means Defendant and any respective parent, subsidiaries, affiliates, successors and related entities, including but not limited to Hyatt Hotels Corporation, and Select Hotels Group, L.L.C., any employee benefit plans sponsored or administered by the Company or such related entities, and any and all of its and their respective past or present officers, directors, partners, members, insurers, agents, assigns, attorneys, employees (including Julian Tucker), trustees, administrators, fiduciaries, and any other persons acting by, through, under or in concert with any of them. (¶1.30)

The

Class Representative will also provide a general release and CC 1542 waiver as to Defendant. (¶¶6.1-6.1.a)

The

release of claims by class members is acceptable as it is limited to claims that were or could have been alleged based on the facts alleged, and which

arose during the relevant period. Plaintiff's broader release is acceptable as he was represented by counsel when this term was negotiated.

CONDITIONAL CLASS CERTIFICATION

A. Standards

A

detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified. (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.)

Because a settlement eliminates the need for a trial, when considering whether to certify a settlement class, the court is not faced with the case management issues present in certification of a litigation class. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) Finally, the Court is under no "ironclad requirement" to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba*, *supra* at p. 240.)

B. Analysis

1. Numerosity. This action involves a class of approximately 37 members. (Settlement Agreement, ¶1.8.)

2. Ascertainability.

This class definition "is precise, objective and presently ascertainable." (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable from Defendant's records. (Settlement Agreement, ¶1.8.)

3. Community of interest. "The community of interest requirement involves three factors: '(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the

class.” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

Counsel contends that commonality is met because Plaintiffs allege that they and other service staff were entitled to the total proceeds of the charge imposed on banquet food and beverage service charges it charged its customers at banquet events held at its hotel, because reasonable customers would have understood it to be a gratuity, and Defendants did not make sufficiently clear to customers that the charge was not being distributed in its entirety to the service employees as gratuity income. Counsel contends that this uniform policy gives rise to a common claim by all class members that Defendants wrongfully withheld a portion of the service charge proceeds. (Supp. Brief, 7:14-21.)

Further, counsel contends commonality is met because Plaintiffs predicate their claims entirely upon the Defendants' uniform practices of: (1) charge imposed on banquet food and beverage service charges it charged its customers at banquet events held at its hotel; and (2) failing to remit the total proceeds of that charge to the service staff. (Supp. Brief, 8:18-21.)

Finally counsel contend that Plaintiffs are adequate representative because they do not have conflicts with the class and are represented by adequate counsel. (Declaration of Plaintiff Sullivan, passim; Declaration of Plaintiff James, passim.)

Hyatt and named plaintiff Michael Sullivan have separately agreed to a settlement of Mr. Sullivan's separate and independent claims before the Division of Labor Standards Enforcement, captioned as Michael Sullivan v. Hyatt Corporation, Charge Nos. WC-CM-930722 and WC-CM-960515 (the “Charges”). Per that agreement Hyatt agrees to pay the gross sum of \$15,000. (MPA, pg. 1, FN.1.) This settlement was negotiated contemporaneously with the class settlement by the same counsel. This settlement (unlike the class settlement) contains a general release of claims. Nothing in the agreement makes it contingent on approval of the class settlement (or vice versa). (Liss-Riordan Supp. Decl., ¶14 and Exhibit E thereto.) The Court requires further briefing as to this individual settlement agreement as explained further above.

4.

Adequacy of class counsel. As

indicated above, Class Counsel is experienced in class actions.

5. Superiority. Given the size of the potential individual recovery, it would be impracticable to bring each Class Member's claim as an individual claim.

Because the elements of class certification have been met, the class may be conditionally certified at this time.

NOTICE TO CLASS

A. Standard

California

Rules of Court, rule 3.769(e) provides: "If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing." Additionally, rule 3.769(f) states: "If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement."

B. Form of Notice

The

proposed notice to class members is attached to the Declaration of Shannon Liss-Riordan as Exhibit B. The information provided in the proposed notice includes a summary of the litigation, the nature and terms of the settlement, the procedures for participating in, opting out of, or objecting to the settlement, and the time, date, and location of the final approval hearing.

The

Court finds the notice acceptable except as follows:

1. The Notice contains the wrong funding deadline.

¶III.1 of the Notice states that Defendant will fund the Settlement not more

than 21 days after the judgment entered by the Court becomes final; (Notice, ¶III.1), while the Settlement at ¶4.2 states that Defendant will fund within fourteen (14) days after the Effective Date. (¶4.2)

2. Can class Members submit Responses via fax or email? If so, make this clear in the Notice.

C.
Method of Notice

Notice will be by Direct Mail. Not later than 15 days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.1)

Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice with Spanish translation. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶8.4.b)

Not later than 7 days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶8.4.c)

If the Administrator, the Parties, Defense Counsel or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class

Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than 14 days after receipt of Class Notice, or the deadline dates in the Class Notice, whichever are later. (§8.4.d)

Notice of Final Judgment

will be posted on the administrator's website. (§8.8.a)

D. Cost of Notice

The

settlement administration costs are estimated at \$25,000. This amount appears reasonable. However, prior to the time of the final

fairness hearing, the Claims Administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

ATTORNEY FEES AND COSTS

California

Rules of Court, rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately,

the award of attorney fees is made by the Court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc.

(2000) 82 Cal.App.4th 615, 625-626; Ketchum

III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the

Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc.

(2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the

contrary, "the court has an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v.

Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether class counsel is entitled to \$35,000 (<33%) in attorneys' fees and costs will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Counsel should also be prepared to justify any costs sought by detailing how such costs were incurred.

PROPOSED SCHEDULE OF SETTLEMENT PROCEEDINGS

The following schedule is proposed by the Court:

Preliminary

Approval Hearing – _____

Deadline

for Serving Notices to Class Members – _____ (within 29 days of preliminary approval date)

Deadline

for Objecting or Opting Out – _____ (45 days from the date the Notice Packets are mailed to class members)

Deadline

for Class Counsel to File Motion for Final Approval of Settlement and Motion for Attorney Fees (and respond to any objections) – _____, 2025

(16 court days prior to hearing)

Final

Fairness Hearing and Final Approval – _____, 2025